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File No.: EXP202207332

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Mr. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on July 4, 2022. The complaint is directed against Mr. B.B.B., with NIF ***NIF.1 (hereinafter, the respondent), regarding the installation of a video surveillance system located at CALLE ***DIRECCIÓN.1, HUELVA, with indications of a possible violation of the provisions of Article 5.1.c) of the General Data Protection Regulation (hereinafter, GDPR).

The reasons supporting the complaint are as follows:

The complainant states that the respondent is responsible for cameras installed on the façade of a property, which are oriented towards the public road, without prior administrative authorization for this. He provides images of the location of the cameras.

The documents submitted are:

- Photographic report

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The notification, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was not collected by the responsible party; the notification was reiterated on 27/07/2022 and 19/08/2022 by certified mail, and was again returned marked "absent."

THIRD: On September 22, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On November 24, 2022, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and the respondent submitted a written statement in which, in summary, he stated that:

"All the documentation proving the necessary administrative authorization to have cameras installed on the façade of my home has already been submitted in response to the notifications received from the files with reference no. E/03416/2015 and A/00163/2016 from the Spanish Agency for Data Protection, as they were installed by a security company that proceeded to request the necessary permits for this. Therefore, please review those files to verify that the documentation was submitted; if any additional document is required, please let me know."

"I am Spanish by birth and have 2 surnames, but I am addressed as C.C.C. and my full name is B.B.B., so the notifications have a formal defect that must be corrected since a second surname is missing for the notifications to reach their destination correctly."

"I request that the sanctioning procedure initiated be archived for having complied with the necessary legal requirements to have them installed since this installation was carried out by a security company."

SIXTH: In the same written statement, he requests:

"It is of interest to the rights of this party that I be sent a copy of the complaint filed by Mr. A.A.A. as well as the photographic report that he claims to have made."

The sending of the complaint including the photographic report, which was carried out in accordance

with the rules established in the LPACAP, granting him a hearing period of five days to formulate any allegations he deems appropriate, was not collected by the respondent; it was returned marked "absent" and "excess (not collected at the office)" on 20/06/2023.

SEVENTH: On June 26, 2023, a resolution proposal was made, proposing that the Director of the Spanish Agency for Data Protection sanction Mr. B.B.B., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, with a fine of €300 (three hundred euros).

EIGHTH: The resolution proposal was notified on July 21, 2023, and the respondent submitted a written statement on August 16, 2023, in which, in summary, he stated that:

"Since May 2022, the 6 security cameras installed on my façade do not work because there is no active recording as the base plate of the video recorder is burned out, which prevents it from recording and viewing the images from the cameras on the monitor." He attached a certificate issued by Liser Informática on August 16, 2023, in this regard.

"When I refer to the documents already submitted in the files with reference no. E/03416/2015 and A/00163/2016 from the Spanish Agency for Data Protection..."

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The necessary administrative authorizations I referred to were due to a complaint from my neighboring property, and there are photos submitted from the images captured by the cameras, where it is evident that the cameras are restricted and primarily record my façade and a minimal part of the sidewalk."

From the actions carried out in the present procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: The claiming party states that the claimed party is responsible for cameras installed on the façade of a property, which are oriented towards the public road, without having prior administrative authorization for this.

It provides images of the location of the cameras.

SECOND: The claimed party alleges that the documentation proving the necessary administrative authorization to have cameras installed on the façade of their home has already been submitted in response to the notifications received from files E/03416/2015 and A/00163/2016 from this Agency, as they were installed by a security company that proceeded to request the necessary permits for this.

THIRD: The claimed party submits a certificate issued by Liser Informática on August 16, 2023, with the following content:

"That the 6 cameras that Mr. B.B.B., with D.N.I. ***NIF.1, has installed at his home on street ***ADDRESS.1 do not have active recording since May 2022 because the motherboard of the video recorder is burned, preventing it from recording and visualizing the images from his cameras on the monitor."

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Response to allegations

In response to the allegations presented by the claimed party, the following should be noted:

The investigation carried out in file E/03416/2015 led to file A/00163/2016, which was resolved with a warning and measures that, at that time, over 6 years ago, were considered fulfilled. This does not mean that the cameras currently comply with the current legislation.

The current data protection regulations are not the same as those applied in 2016, as the GDPR came into effect in 2018, and in December of that same year, the LOPDGDD was approved, so this procedure is governed by the aforementioned currently applicable legislation.

On the other hand, the fact that a video surveillance system has been installed in accordance with security regulations does not authorize the capture of images of individuals passing through the public road.

It should be noted that, from the documentation provided by the claiming party, it is evident that, as of the date of the complaint submission, there are cameras whose orientation is directed towards the public road, thus capturing excessively.

However, the claimed party indicates in their allegations to the proposed resolution that "Since May 2022, the 6 security cameras installed on my façade do not function because they do not have active recording due to the motherboard of the video recorder being burned, which prevents it from recording and visualizing the images from its cameras on the monitor." They attached a certificate issued by Liser Informática on August 16, 2023, regarding this matter.

Therefore, until May 2022, such cameras could indeed record, which means that, up to that date, the claimed party has committed an infringement of Article 5.1.c) of the GDPR.

III

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

The images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

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It is therefore pertinent to analyze whether the processing of personal data (images of individuals) carried out through the reported video surveillance system is in accordance with the provisions established in the GDPR.

IV

Infringement

Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data can be considered lawful.

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems with the aim of preserving the safety of individuals and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing operation, only the relevant personal data that is pertinent and strictly necessary to fulfill the purpose for which it is processed may be processed. The processing must be appropriate and proportional to the purpose it aims to achieve. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same.

In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places, unless there is government authorization, can only be carried out by the Security Forces and Bodies.

On some occasions, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security.

That is to say, cameras and video cameras installed for security purposes may not capture images of the public road unless it is essential for that purpose or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of individuals and property, as well as their facilities.

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Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, it must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras may not capture images of private spaces belonging to third parties and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without a justified cause is not permitted. Images may also not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the individuals present in those spaces.

Furthermore, it is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

V

Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system with the aim of preserving the safety of individuals and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The obligation to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD must be fulfilled.

In this regard, Article 22 of the LOPDGDD provides for a “layered information” system concerning video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

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This information shall be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information of the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the other elements of Article 13 of the GDPR.

4.- The processing of images through the installation of camera systems or video cameras must be lawful and comply with the principles of proportionality and data minimization, as previously indicated.

5.- Images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording was obtained.

6.- The data controller must maintain a record of processing activities carried out under its responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The data controller must conduct a risk analysis or, where appropriate, a data protection impact assessment, to identify the risks arising from the implementation of the video surveillance system, assess them, and, if necessary, adopt appropriate security measures.

8.- When a security breach occurs that affects the processing of cameras for security purposes, provided there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours. A security breach is understood to be the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Data Protection Agency provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and Resolutions" / "Regulations"),

- the Guide on the use of video cameras for security and other purposes,

- the Guide for compliance with the duty to inform (both available in the "Guides and Tools" section).

It is also of interest, in cases of low-risk data processing, the free tool Facilita (in the "Guides and Tools" section), which, through specific questions, allows assessing the situation of the data controller regarding the personal data processing it carries out, and if applicable, generate various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

VI

Administrative Infraction

In accordance with the proven facts established during the sanctioning procedure, it is considered that the facts presented violate the provisions of Article 5.1.c) of the GDPR, constituting an infraction classified under Article 83.5.a) of the GDPR, which states the following:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)".

For the purposes of the statute of limitations for infractions, the infraction indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: infractions that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)".

VII

Sanction

Article 58.2 of the GDPR establishes:

“Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

d) order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time;

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(...)

i) impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this section, depending on the circumstances of each particular case.”

According to the provisions of Article 83.2 of the GDPR, the measure provided for in Article 58.2 d) of the aforementioned Regulation is compatible with the sanction consisting of an administrative fine.

With respect to the infringement of Article 5.1.c) of the GDPR, considering the proven facts, it is deemed that the sanction that should be imposed is an administrative fine.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states:

“2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;

e) any previous infringement committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with those measures;

j) adherence to codes of conduct pursuant to Article 40 or to certification mechanisms approved under Article 42,

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

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For its part, in relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76,

“Sanctions and corrective measures,” provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party could have included the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

The balance of the circumstances considered, regarding the infringement of Article 5.1 c) of the GDPR, allows for the setting of a fine of €300 (three hundred euros).

VIII

Conclusion

Therefore, in accordance with the applicable legislation and assessed the criteria for graduation of the sanction whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on Mr. B.B.B., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, a fine of 300 euros (THREE HUNDRED euros).

SECOND: TO NOTIFY this resolution to Mr. B.B.B.

THIRD: To warn the sanctioned party that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. In the event of non-compliance, collection will proceed in the executive period.

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Upon receipt of the notification and once it is executive, if the date of executive status falls between the 1st and the 15th of each month, inclusive, the deadline for making voluntary payment will be until the 20th of the following month or the next business day thereafter. If it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file

an administrative contentious appeal before the Administrative Court of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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